

 Department of Children & Family Services <i>Building a Stronger Louisiana</i>	Division/Section	Family Support
	Chapter No./Name	4 – Economic Stability (ES)
	Part No./Name	C – Case Processing
	Section No./Name	C-800 FITAP-SNAP Changes
	Document No./Name	C-830-FITAP Adverse Action On Certified Cases
	Effective Date	July 1, 2021

I. STATEMENT OF POLICY

IN SOME ADVERSE ACTION SITUATIONS, THE CLIENT IS ENTITLED TO 13-DAY ADVANCE NOTICE. THIS PERIOD IS DETERMINED BY COUNTING 13 DAYS FROM THE DATE THE NOTICE IS MAILED, CONSIDERING THE DAY AFTER THE DATE THE NOTICE IS MAILED AS THE FIRST DAY. THE ACTION MUST NOT BE TAKEN DURING THE ADVANCE NOTICE PERIOD WHICH EXPIRES AT 4:30 P.M. ON THE 13TH DAY. IF THE 13TH DAY FALLS ON A WEEKEND OR HOLIDAY, TREAT THE FOLLOWING WORKDAY AS THE 13TH DAY. OTHER ADVERSE ACTIONS ARE EFFECTIVE IMMEDIATELY.

C-831-FITAP - PO ADVERSE ACTIONS THAT REQUIRE ADVANCE NOTICE

EXCEPT AS SPECIFIED IN C-832 BELOW, SEND 13-DAY ADVANCE NOTICE OF ADVERSE ACTION TO REDUCE BENEFITS OR CLOSE A CASE.

C-832-FITAP - PO ADVERSE ACTIONS THAT ARE EFFECTIVE IMMEDIATELY

IN THE FOLLOWING SITUATIONS, 13-DAY ADVANCE NOTICE IS NOT REQUIRED. A CONCURRENT NOTICE IS SENT TO THE CLIENT WHEN:

1. THE AGENCY DISQUALIFIES A HOUSEHOLD MEMBER BECAUSE OF AN INTENTIONAL PROGRAM VIOLATION AND THE BENEFITS OF THE REMAINING HOUSEHOLD MEMBERS ARE REDUCED OR ENDED BECAUSE OF THE DISQUALIFICATION. FORM FR 15A IS SENT BY THE FRAUD AND RECOVERY UNIT AND A CONCURRENT NOTICE OF REDUCTION IS SENT BY LITE.
2. THE WORKER REDUCES OR ENDS BENEFITS AT THE END OF A NORMAL PERIOD OF CERTIFICATION WHEN THE HOUSEHOLD TIMELY REAPPLIES.
3. A CLIENT HAS BEEN CERTIFIED IN ANOTHER STATE AND THAT FACT HAS BEEN ESTABLISHED.
4. THE CLIENT SIGNS A STATEMENT REQUESTING CLOSURE OR REDUCTION IN BENEFITS AND WAIVING THE RIGHT TO ADVANCE NOTICE.
5. BENEFITS ARE REDUCED OR TERMINATED EFFECTIVE THE MONTH FOLLOWING THE SIMPLIFIED REPORT MONTH AS A RESULT OF CHANGES REPORTED THROUGH THE SIMPLIFIED REPORTING PROCESS.

EXCEPTION: ADVANCE NOTICE IS REQUIRED PRIOR TO IMPOSING A SANCTION FOR FLEEING FELON RESTRICTIONS, PROBATION/PAROLE VIOLATIONS, AND FAILURE TO COMPLY WITH ELIGIBILITY REQUIREMENTS, SUCH AS *** VOLUNTARY QUIT.

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6. THE AGENCY RECEIVES A WRITTEN REPORT SIGNED BY THE HEAD OF THE HOUSEHOLD OR OTHER RESPONSIBLE HOUSEHOLD MEMBER WHICH PROVIDES SUFFICIENT INFORMATION FOR THE AGENCY TO DETERMINE THE HOUSEHOLD'S BENEFIT AMOUNT OR INELIGIBILITY. E-MAIL CORRESPONDENCE IS CONSIDERED A SIGNED, WRITTEN REPORT IF IT IS SENT BY THE HEAD OF THE HOUSEHOLD OR OTHER RESPONSIBLE HOUSEHOLD MEMBER FROM THE E-MAIL ADDRESS THAT THE HOUSEHOLD HAS PREVIOUSLY REPORTED AS THEIR E-MAIL ADDRESS.
7. MASS CHANGES.
8. The client's whereabouts are unknown and agency mail directed to the client has been returned by the Post Office indicating no known forwarding address.
9. The agency has factual information confirming the death of the FITAP payee.
10. A child is removed from the home as a result of a judicial determination, or voluntarily placed in foster care by his legal guardian.
11. The client has been admitted or committed to an institution, or placed in skilled nursing care, intermediate care or long-term hospitalization.
12. The case is closed due to the amount of child support collected through CSE.
13. The client has been certified for Supplemental Security Income or Foster Care Payments Income and that fact has been established.
14. The grant is being reduced or closed because a child is being certified for KCSP.

C-833-FITAP – PO CONTINUATION OF BENEFITS AFTER AN APPEAL REQUEST

C-833-1-FITAP - PO Advance Notice of Adverse Action

DO NOT TAKE THE ACTION TO REDUCE OR TERMINATE BENEFITS IF THE CLIENT REQUESTS A FAIR HEARING DURING THE 13-DAY ADVANCE NOTICE PERIOD UNLESS THE HOUSEHOLD WAIVES ITS RIGHT TO CONTINUED BENEFITS. IF THE REQUEST FOR A FAIR HEARING IS SUBMITTED BY MAIL, IT MUST BE POSTMARKED BY THE 13TH DAY GIVEN ON THE NOTICE OF ADVERSE ACTION.

IF THE HOUSEHOLD DOES NOT WAIVE ITS RIGHT TO CONTINUED BENEFITS, BENEFITS SHALL CONTINUE AT THE SAME LEVEL UNTIL THE END OF THE CERTIFICATION PERIOD OR UNTIL THE RESOLUTION OF THE HEARING, WHICHEVER IS FIRST.

C-833-2-FITAP - PO Concurrent Notice of Adverse Action

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IF THE CLIENT REQUESTS A FAIR HEARING WITHIN 13 DAYS OF THE MAILING DATE OF A NOTICE WHICH WAS SENT CONCURRENT WITH THE ACTION, REINSTATE BENEFITS TO THE PREVIOUS LEVEL WITHIN 5 DAYS FROM THE DATE OF RECEIPT OF THE HOUSEHOLD'S REQUEST FOR A FAIR HEARING UNLESS THE CLIENT WAIVES HIS RIGHT TO CONTINUED BENEFITS. IF THE REQUEST FOR A FAIR HEARING IS SUBMITTED BY MAIL, IT MUST BE POSTMARKED BY THE 13TH DAY AFTER THE CONCURRENT NOTICE WAS SENT. IF THE 13TH DAY FALLS ON A WEEKEND OR HOLIDAY, TREAT THE FOLLOWING WORKDAY AS THE 13TH DAY.

IF THE HOUSEHOLD DOES NOT WAIVE ITS RIGHT TO CONTINUED BENEFITS, BENEFITS WILL BE REINSTATED AT THE PRIOR LEVEL AND CONTINUE UNTIL THE END OF THE CERTIFICATION PERIOD OR UNTIL THE RESOLUTION OF THE HEARING, WHICHEVER IS FIRST.

THIS APPLIES IF ACTION WAS TAKEN TO REDUCE OR END BENEFITS BASED SOLELY ON WRITTEN INFORMATION FROM THE HOUSEHOLD.

NOTE: REINSTATEMENT OF BENEFITS IS NOT APPLICABLE FOR CHANGES OR CLOSURES MADE AT THE END OF A NORMAL PERIOD OF CERTIFICATION.

II. PROCEDURES

C-831-FITAP – PR ADVERSE ACTIONS THAT REQUIRE ADVANCE NOTICE

A MANUAL *** OR AUTOMATED NOTICE OF DECISION *** MAY BE SENT.

C-832-FITAP - PR ADVERSE ACTIONS THAT ARE EFFECTIVE IMMEDIATELY

A Manual *** or Automated Notice of Decision *** may be sent.

III. FORMS AND INSTRUCTIONS

* THERE ARE NO FORMS ASSOCIATED WITH THIS POLICY. **

IV. REFERENCES

[45 CFR 206.10](#)

[LAC 67:III.1257](#)

Chapter 7 Administrative Procedures Manual, Section K